



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

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From insight to impact.

Agenda

- Democracy
 - Basic Forms of Democracy
 - Democracy in the Swiss System
 - Political Rights: Popular initiative and referendum

Structural Principles

Principle of
the
Rechtsstaat

Principle of
federalism

Principle of
democracy

Principle of
social justice

Democracy

Democracy implies that all state power is based on the will of the people.

The main characteristics of a democratic political system are popular self-determination and the public control over political power.

Example: Popular Initiative „Cash is freedom“



On 8 March 2026, voters and cantons decide whether to guarantee, in the constitution, the availability of cash. They will vote on the „cash is freedom“ initiative. It calls for banknotes and coins to be forever available in sufficient quantities and that any attempt to replace the Swiss franc with another currency must be adopted by the voters and cantons (new Art. 99 Cst). The Federal Council and Federal Parliament agreed on a counterproposal with a different wording amending Art. 99 Cst that the Swiss franc is the national currency and that the SNB must guarantee the supply of cash.

Source: <https://www.swissinfo.ch/eng/swiss-politics/swiss-to-vote-on-preserving-cash-as-a-payment-system/90786867>

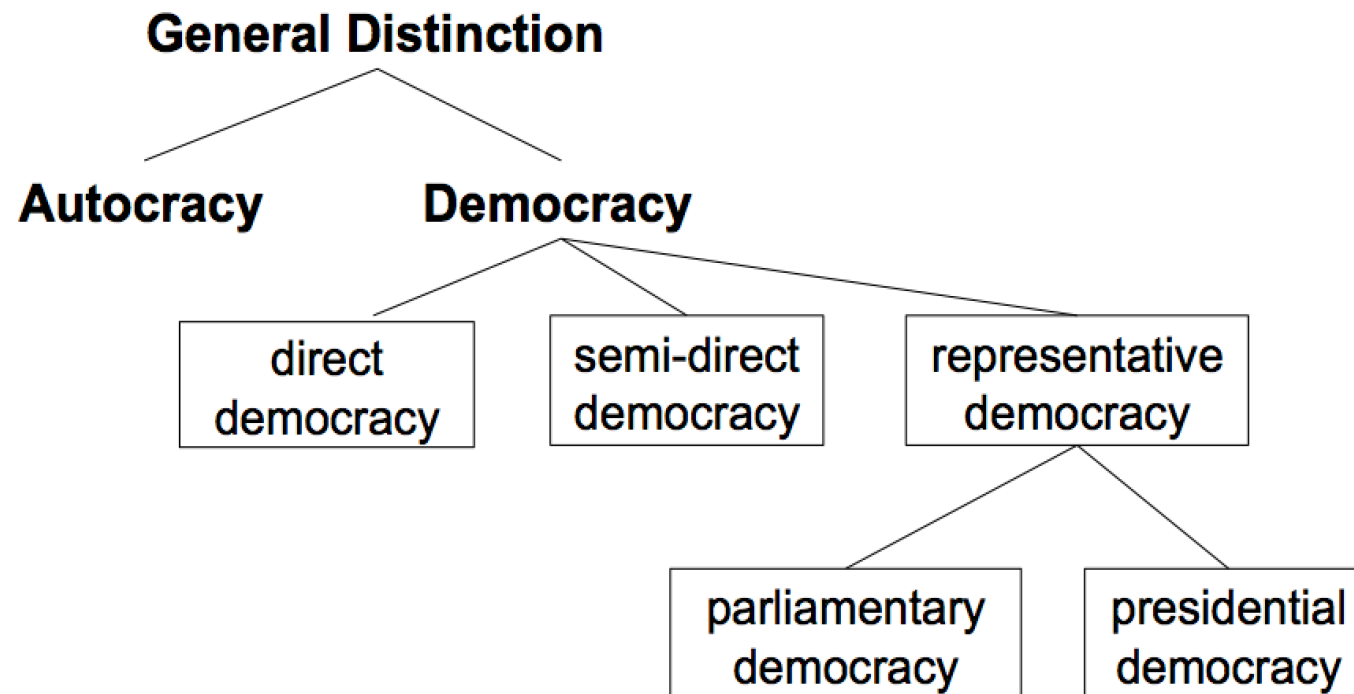
Example: Airport Zurich AG



Although Zurich Airport AG is a listed company limited by shares under the Swiss Code of Obligations, the legal process to decide on new capacities regarding runways is complex and – also due to democratic participation – time consuming:

- A decision regarding changes to the position and length of the runways needs the approval of the representatives of the Canton of Zurich in the board of directors of the Zurich Airport AG.
- The Government Council (Government) of Zurich will issue instructions to the cantonal representatives regarding this decision. However, the Government Council will request the Cantonal Council (Parliament) to approve the corresponding directive in advance. This decision of the Cantonal Council is subject to an optional referendum (e.g. 3000 citizens in the Canton of Zurich may ask for a popular vote).

Democracy



Democracy – Overview

Direct Democracy

People decide on policy questions directly; all eligible citizens have direct and active participation in the decision-making. In the ideal form of direct democracy, there is no parliament.

Representative Democracy

The people's participation is limited to the election of the government officials representing the people. The people in general do not decide on questions of policy. The two main forms of representative democracy are presidential and parliamentary democracy.

Democracy – Overview

Semi-direct Democracy

A representative democracy with instruments of direct democracy. In general, the parliament with elected representatives and the government officials are the main decision makers. However, the people have some instruments with which to directly influence policy questions.

Democracy in the Swiss System

- The people elect their representatives in the Federal Assembly, the primary decision-making institution together with the Federal Council.
 - In addition, citizens may directly influence parliamentary decisions regarding both the Constitution and ordinary legislation through federal referenda and initiatives.
- Switzerland can be characterized as a *semi-direct democracy*.
- As a consequence of the direct influence of the citizens, the Swiss model is also called a *consensus-oriented democracy*.

Federal Initiative and Federal Referendum

Federal *Initiative*

The popular initiative gives the people a certain degree of influence and control over the political agenda. A complete or partial revision of the constitution may be requested.

Federal *Referendum*

The instrument of the referendum gives citizens the right to veto legislation on federal level. Through the referendum, the people approve or reject a constitutional amendment, statute, treaty, or parliamentary decision regarding a concrete issue (federal decree).

Example: „Internet Initiative“

Your friend has heard the following news and asks you to explain the form and procedure of the democratic instrument mentioned:

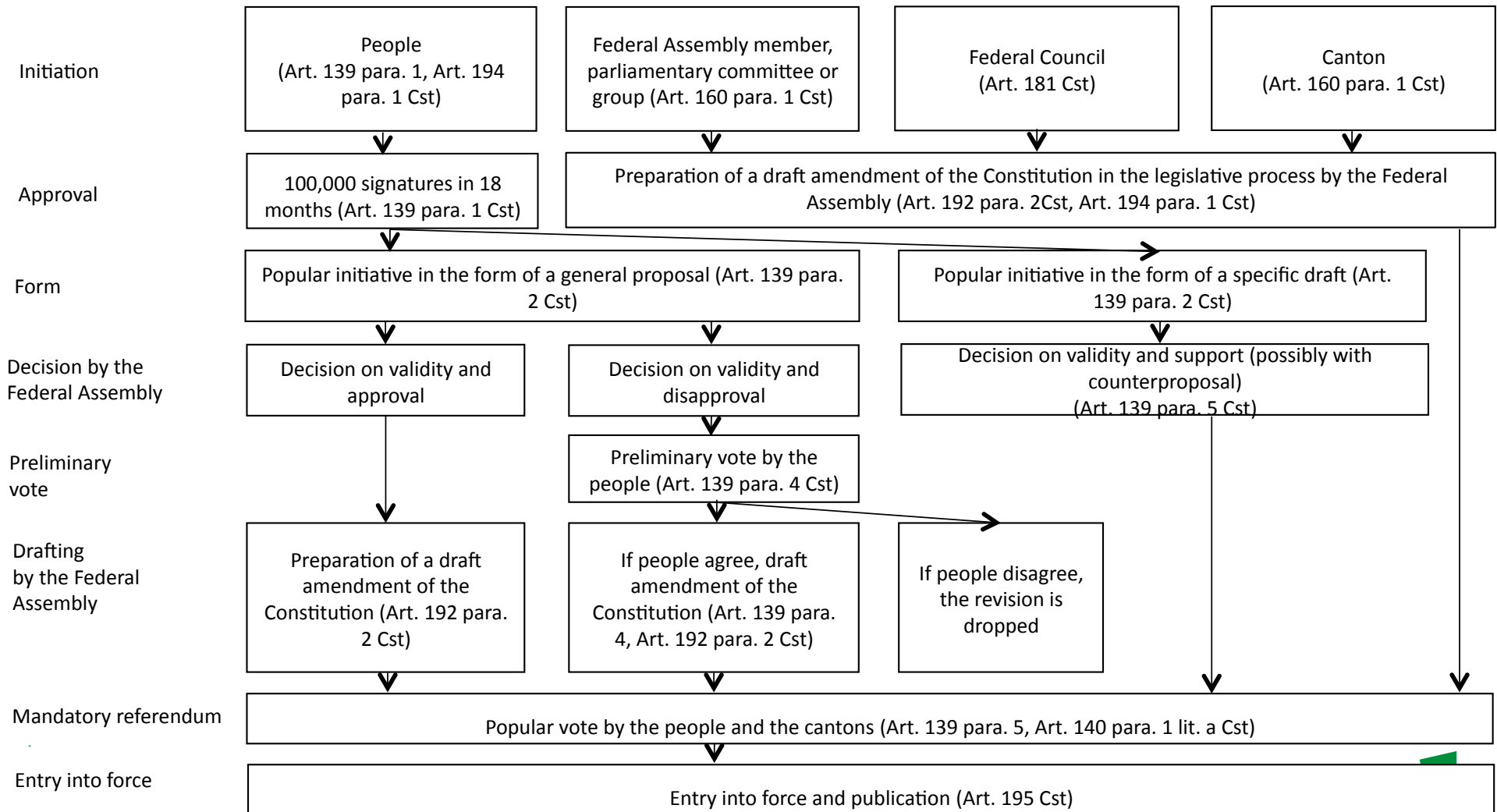
Last week, the “Internet Initiative” was launched by the Guido Fluri Foundation. The initiative wants a new Art. 93a in the Constitution demanding that platforms, search engines and AI providers analyse the risks of their services and take measures to limit them. The initiators criticise that the business model of corporations aims to maximise attention without accountability. They want consequences for breaches of due diligence.



Initiative on Federal Level

Instrument	Form	Requirements	Remarks
Initiative for total revision of the Constitution (Art. 138 Cst)	General proposal	100,000 signatures	First, a preliminary vote of the people is necessary; to be adopted, the totally revised Constitution must be accepted in a final vote with double majority (people and cantons)
Initiative for partial revision of the Constitution (Art. 139 Cst)	General proposal or specific draft	100,000 signatures	To be adopted, a double majority (people and cantons) is necessary

Partial revision of the Constitution



Popular Initiative Requesting a Partial Revision of the Constitution

(1) Examination of signature list by Federal Chancellery (Art. 68-69 PRA)



(2) Collection of signatures within 18 months after official publication of the initiative (Art. 69 para. 4 PRA, Art. 139 para. 1 Cst)



(3) Verification of signatures and submission of the initiative to the Federal Chancellery (Art. 71 PRA)



(4) Decision of the Federal Chancellery if request for an initiative is successful (Art. 72 PRA)

Popular Initiative Requesting a Partial Revision of the Constitution

(5) Dispatch of Federal Council (Art. 97 ParlA)



(6) ***Decision on the validity of the initiative by parliament (Art. 139 para. 3, Art. 194 para. 2-3 Cst, Art. 75 PRA)***



(7) Decision on support by parliament (Art. 139 para. 5 Cst, Art. 100 ParlA)



(8) Popular vote on the popular initiative (Art. 195 Cst, Art. 75a PRA)



(9) Entry into force and publication (Art. 195 Cst, Art. 7 PubA)

Popular Initiative Requesting a Partial Revision of the Constitution

(6) Decision on the validity of the initiative by parliament (Art. 139 para. 3, Art. 194 para. 2-3 Cst, Art. 75 PRA)

- i. The initiative must respect the principle of *consistency of form* (Art. 139 para. 3, Art. 194 para. 3 Cst).
- ii. The initiative must respect the *consistency of subject matter* (Art. 139 para. 3, Art. 194 para. 2 Cst).
- iii. The initiative must be in accordance with mandatory provisions of international law, the *ius cogens* (Art. 139 para. 3, Art. 194 para. 2 Cst).
- iv. The initiative must be *possible to implement*.

Question – Discuss the validity of the following popular initiative

Popular Initiative „For less military expenses and more peace policy “

The transitional provisions of the Federal Constitution will be changed as follows:

Transitional Provisions Art. 20 (new)

¹ The federation cuts the budget for national defence annually in the amount of 10 per cent from last year's budget for the national defence (...).

² At least one third of the saved money will be spent on:

- additional international peace policy (sustainability, development cooperation, peace building) and
- additional social security in Switzerland. (...)

Question – Discuss the validity of the following popular initiative

Popular Initiative „For a new organisation of the military service“

Art. 18 Cst shall be newly worded in order to:

1. make clear that the duty for every Swiss man to do military service is the rule,
2. that it provides an alternative civilian service for Swiss men who cannot do military service because of their faith or conscience,
3. that it requests the establishment of a federal civilian service organization.

In addition, the Federal Constitution will be amended as follows:

Art. 18 (new)

¹ Every Swiss woman is required to do military service.

Initiative and International Law

- Popular initiatives which conflict with the peremptory norms of international law (*ius cogens*)
→ not valid
- Popular initiatives which do not comply with other norms of international law → valid
- Problem: In recent years the people and the cantons have accepted popular initiatives for which the consistency with international law is highly questionable

Federal Constitution of the Swiss Confederation, SR 101

Art. 121a Control of Immigration

- 1 Switzerland shall control the immigration of foreign nationals autonomously.
- 2 **The number of residence permits for foreign nationals in Switzerland shall be restricted by annual quantitative limits and quotas. The quantitative limits apply to all permits issued under legislation on foreign nationals, including those related to asylum matters. The right to permanent residence, family reunification and social benefits may be restricted.**
- 3 The annual quantitative limits and quotas for foreign nationals in gainful employment must be determined according to Switzerland's general economic interests, while giving priority to Swiss citizens; the limits and quotas must include cross-border commuters. The decisive criteria for granting residence permits are primarily a application from an employer, ability to integrate, and adequate, independent means of subsistence. (...)

Example: Referendum

Your friend has heard the following news and asks you to explain the form and procedure of the democratic instrument mentioned:

Over the course of 2022, Germany twice asked Switzerland to allow it to re-export 12,400 rounds of Gepard tank ammunition to Ukraine. However, Switzerland has a ban on exporting and re-exporting Swiss-made weaponry to countries involved in a conflict in its War Materials Statute. Now the Federal Parliament decided to revise the War Materials Statute granting arms exports and re-exports for 25 countries, even if they are involved in a conflict. The Green Party is strictly opposed to such an amendment and wants to prevent it.



Referendum on Federal Level I

Instrument	Fields of application	Requirements	Remarks
(Suspensive) mandatory referendum (Art. 140 para. 1 lit. a-b Cst)	- All constitutional amendments; - Decisions on membership in a supranational organization/organization of collective security.		To be adopted, a double majority of people and cantons (Art. 142 para. 2 Cst) is required.
(Abrogative) mandatory referendum (Art. 140 para. 1 lit. c Cst)	Emergency federal statutes not based on the Constitution and whose validity exceeds one year.	The popular vote must be held within one year after being passed by the Federal Assembly.	To be adopted, a double majority of people and cantons (Art. 142 para. 2 Cst) is required.

Referendum on Federal Level II

Instrument	Fields of application	Requirement	Remarks
Mandatory referendum (Art. 140 para. 2 lit. a-c Cst)	- Popular initiatives for a total revision of Cst; - Popular initiatives for a partial revision of Cst in form of general proposal that have been rejected by the Federal Assembly; - The question of whether a total revision of Cst should be carried out when the two Councils of parliament disagree.		Majority of the people (Art. 142 para. 1 Cst)
(Suspensive) optional referendum (Art. 141 para. 1 lit. a, c-d Cst)	- Federal statutes; - Specific federal decrees; - Specific international treaties.	50,000 sign. or 8 cantons	Majority of the people (Art. 142 para. 1 Cst)
(Abrogative) optional referendum (Art. 141 para. 1 lit. b Cst)	Emergency federal statutes whose term of validity exceeds one year.	50,000 sign. or 8 cantons	Majority of the people (Art. 142 para. 1 Cst)

Referendum on Federal Level

May the citizens participate on the federal level in the following:

- Art. 8 Cst is repealed;
- The accession of Switzerland to the EU;
- Amendment of Art. 2a of the Ordinance on political rights;
- A commune in the canton of Thurgau wants to become part of the canton of St. Gallen;
- A new federal statute on the prohibition of forced marriages;
- The two half-cantons of Appenzell Innerrhoden and Appenzell Ausserrhoden want to merge to one canton.

Course

There will be a guest lecture on 18 March 2026, 04.00-07.00 pm:

Government by Consent: The Swiss Political System in Comparative Perspective

Dr. Martin Kayser, LLM (UCL), Author, Judge (retired) and Lecturer at the University of St. Gallen and Zurich University of Applied Sciences

Prof. Yossi Nehushtan, Professor of Law and Philosophy, Keele University, UK

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